

Opinion of the Court

JUSTICE ALITO delivered the opinion of the Court.

We are asked in this case to extend *Bivens* v. *Six Unknown Fed. Narcotics Agents*, 403 U. S. 388 (1971), and create a damages remedy for a cross-border shooting. As we have made clear in many prior cases, however, the Constitution’s separation of powers requires us to exercise caution before extending *Bivens* to a new “context,” and a claim based on a cross-border shooting arises in a context that is markedly new. Unlike any previously recognized *Bivens* claim, a cross-border shooting claim has foreign relations and national security implications. In addition, Congress has been notably hesitant to create claims based on allegedly tortious conduct abroad. Because of the distinctive characteristics of cross-border shooting claims, we refuse to extend *Bivens* into this new field.

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The facts of this tragic case are set forth in our earlier opinion in this matter, *Hernández v. Mesa*, 582 U. S. 548 (2017) (*per curiam*). Sergio Adrián Hernández Güereca, a 15-year-old Mexican national, was with a group of friends in

Former Officials of U. S. Customs and Border Protection Agency by *Kelsi Brown Corkran* and *Thomas M. Bondy*; for the Government of the United Mexican States by *Donald Francis Donovan* and *Carl J. Micarelli*; for Immigrant and Civil Rights Organizations by *Matthew E. Price*, *Trina Realmuto*, *Mary A. Kenney*, and *Matt Adams*; for the Institute for Justice by *Robert Frommer* and *Darpana Sheth*; for the Tahirih Justice Center et al. by *Sharon Katz* and *Julie Goldscheid*; for Douglas Laycock et al. by *Joshua Matz*; for Alan Mygatt-Tauber by *Mr. Mygatt-Tauber, pro se*; for Gregory C. Sisk by *Ari J. Savitzky* and *David Sapir Lesser*; and for Carlos M. Vazquez et al. by *Hyland Hunt* and *Ruthanne M. Deutsch*.

Briefs of *amici curiae* urging affirmance were filed for APA Watch by *Lawrence J. Joseph*; and for the Criminal Justice Legal Foundation by *Kent S. Scheidegger* and *Kymberlee C. Stapleton*.

Briefs of *amici curiae* were filed for the Border Network for Human Rights et al. by *Arleigh P. Helfer III* and *Stephen A. Fogdall*; for Border Scholars by *Joshua S. Lipshutz* and *Ethan D. Dettmer*; and for the Council on American-Islamic Relations et al. by *Lena F. Masri* and *Justin Sadowsky*.